IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH BENCH

COURT No.1

(*through hybrid mode*)

ITEM No. 101

CP (CAA) No. 50/Chd/Pb/2022
(2nd motion)

IN THE MATTER OF:-

Beverly Bakers Limited ...Petitioner Company

Under Section: 230-232, CA 2013

Order delivered on 31.05.2024

CORAM:

SH. L. N. GUPTA
MEMBER (TECHNICAL)

SH. HARNAM SINGH THAKUR
MEMBER (JUDICIAL)

PRESENT:

For the petitioner Company	:	Mr. Vaibhav Sahni, Advocate
For the OL	:	Mr. Edward George Augustine
For the RD/ROC	:	Mr. Vineet Khatri, Company Prosecutor
For the Income Tax Dept.	:	None

ORDER

The Income Tax Department appeared for the first time on 01.05.2023, thereafter on 05.07.2023, and subsequently on 12.03.2024. Vide order dated 12.01.2024 Income Tax Department was granted one last opportunity for filing its report within two weeks, failing which it will be presumed that Income Tax Department has nothing to say in the matter. On 12.03.2024, it is seen that Income Tax Department was represented by Mr. Saurabh Kapoor, Senior Standing Counsel who prayed for time for filing its report. Two weeks' time was granted with no further opportunity. Today, there is no representation on behalf of the Income Tax Department and still no report/objection has been filed by them. It seems that the Income Tax Department is

not interested to file any reply/objection and therefore, it is presumed that they have nothing to say in the matter. Therefore, their right to file reply is forfeited.

A date is requested by Company Prosecutor representing RD/ROC on the ground that the response to the RD's report submitted by Petitioner-Company is not available with the Office of RD. Therefore, Ld. counsel appearing on behalf of the Petitioner-Company is directed to file the said affidavit on the file as well as a copy in advance to the RD. Let the same be done within one week and response, thereto, if any, be filed by the RD within one week with a copy in advance to the counsel opposite. It is stated by ld. counsel appearing on behalf of the OL that they have no objections/observations to the scheme. Let the matter be listed on 05.07.2024.

Sd/-
(L. N. GUPTA)
MEMBER (TECHNICAL)

Sd/-
(HARNAM SINGH THAKUR)
MEMBER (JUDICIAL)

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